

25STCV03485 25STCV03485

County: los-angeles

Division: Civil Law and Motion

Department: 735

Hearing date: 2026-07-21

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Case Number: 25STCV03485 Hearing Date: July 21, 2026 Dept: 735

Landau. v. Small

(1) Plaintiff's Motion to Compel Further

Responses to Requests for Production of Documents from Defendant;

(2) Plaintiff's Motion to Compel Further

Responses to Form Interrogatories from Defendant

BACKGROUND

The action arises from a motor vehicle accident. On February 7, 2025, Plaintiff Jennifer Altfeld Landau filed a complaint for negligence against Defendant Ryan Small.

DISCUSSION

Plaintiff moves to compel further responses to RPDs, set one, nos. 1, 5, 6, 12 and 13 and FIs, set one, no. 15.1 from Defendant. Plaintiff also seeks production of the first 27 of the 28 documents listed on Defendant's Revised Privilege Log served on March 11, 2026. RPD No. 1 seeks statements made by Defendant relating to the accident. RPD No. 5 seeks documents made by Defendant relating to the accident. RPD no. 6 seeks Defendant's cell phone records. RPD No. 12 seeks communications between Defendant and any other person relating to the accident. RPD No. 13 seeks communications between Defendant and his insurer relating to the accident. FI no. 15.1 request Defendant identify facts, documents and witnesses that support Defendant's defenses.

Requests

for Production of Documents

Defendant

responded to the RPDs by stating Defendant does not possess any responsive non-privileged documents and by providing a privilege log relating to Defendant's communications with his insurer. Defendant asserts that cell phone records are protected by Defendant's right to privacy. Plaintiff argues that the first 27 of 28 documents on the privilege log should be produced because they were generated before defense counsel was retained.

The documents requested by the RPDs, including the cell phone records, are relevant and discoverable. The first 27 of 28 documents cited in the privilege log are not attorney-client communications nor do they appear to have been created by an attorney as work-product. In opposition, Defendant merely states that "pre-complaint insurer documents were handled in good faith; post-retention materials are presumptively privileged." That the communications between Defendant and his insurer were made "in good faith" does not make them privileged. Further response to RPDs is necessary.

Plaintiff

requests \$14,987.50 in sanctions, which includes 8.5 hours to draft the motion and 10 hours to prepare a reply and attend the hearing at \$750.00 per hour. The Court finds sanctions in this amount are excessive. The Court will allow Plaintiff to recover \$7,560.00 in sanctions for 10 hours of attorney time plus the filing fee.

Form

Interrogatories

The

Court will address during the hearing the adequacy of the responses.

CONCLUSION

The Court grants Plaintiff's motions to compel further responses to RPDs. The Court grants Plaintiff's request for sanctions in the reduced amount of \$7,560.00. Defendant is ordered to provide further response to discovery within 30 days of notice of

ruling.

The Court continues Plaintiff's motion to compel further responses to FIs.

Plaintiff to give notice.